

# Introduction

The United States presently has the dubious distinction of being the world's incarceration leader. Even though Americans comprise less than 5 percent of the global population, this country houses roughly one-quarter of the world's inmates. There are more than 2.3 million incarcerated offenders residing within prisons and jails in the United States. This enormous prison population is something that is unprecedented, not only in the United States but throughout the world. Punishing such a large number of people comes with a price tag of approximately \$80 billion per year. Furthermore, it is of particular concern that members of racial minorities are significantly more likely than whites to find themselves behind bars. For example, one in three African American men will be imprisoned at some point during their lifetime. To make matters worse, if a black male does not graduate from high school, there is a 60 percent chance he will spend at least some part of his adulthood in a correctional facility.

As readers peruse through the pages of this two-volume encyclopedia of correctional systems and practices, they will see that incarceration was once considered a benevolent alternative to draconian sanctions, such as mutilations, banishment, branding, and executions. The evidence reveals that early Americans were inspired to use humane punishments by scholars such as Cesare Beccaria, the Italian law professor who argued from across the globe that punishment should be intended to enhance public safety rather than to avenge crime. Around this same time, William Penn, a philosopher, real estate tycoon, and founder of Pennsylvania, proposed the Great Law, a penal code based on tenants of the Quaker religion, which replaced harsher punishments with fines and jail time. In fact, the Walnut Street Jail in Philadelphia, which is often cited by historians as one of the first prisons in the United States, was intended to be a place of refuge where inmates could privately reflect on their misdeeds in individual cells and seek penitence. It would not be long before prisons and jails were referred to as "penitentiaries" all throughout the nation, a term still used today.

By the antebellum era, correctional facilities had become an established part of our culture and virtually as "American as apple pie." However, criminal justice pioneers were not afraid to experiment with new forms of incarceration. For example, Captain Elam Lynds established the Auburn system of penology in 1821. Under the Auburn system, inmates worked together in congregate shops but were expected to work silently to prevent the prison from becoming a "school for criminals." It was not long before industrialists criticized the Auburn system because they were unable to compete with the free labor of the prison regime. Meanwhile, and halfway around the world, Captain Alexander Maconochie devised a system of parole in the penal colony of Norfolk Island near Australia. Beginning around the 1850s, certain states within the United States adopted Maconochie's innovation of early release. This is one of many examples throughout the history of prisons and jails, which illustrates that Americans have long sought to achieve a sense of fairness and balance in administering punishment. Of course, as one reads the various entries throughout this encyclopedia, it will soon become apparent that it is highly debatable as to whether or not contemporary correctional facilities reflect the ideals of fairness, equity, and justice for all.

Prisons and jails in the United States have long targeted individuals of color, as they continue to do so today. In the 19th century, in the aftermath of the Civil War, southern states did not have the infrastructure to feed, clothe, and take care of convicted offenders. Instead, inmates were rented out to private businesses at a rate of around \$3 a head per month. Historians have written extensively of the "black codes" that were implemented where African Americans could be imprisoned for the most petty and mundane type of offenses imaginable. It is a sad but well-established fact that the rate of incarceration for African Americans rose by roughly 500 percent following the Civil War. Virginia, South Carolina, Georgia, and Texas were notorious for using variations of the convict leasing system where field hands were literally worked to death. Eventually, when prison officials realized they could make more money by forcing prisoners to work in public facilities, convict leasing was phased out.

Although the layperson may regard prisons and jails as crude facilities that are designed merely to warehouse inmates, in actuality the field of corrections can often be quite progressive. In 1913, Thomas Mott Osborne, a Harvard-educated idealistic prison reformer, spent a week undercover as a convict in the Auburn Prison in order to expose the cruelties of institutional life. Osborne later became a warden of Sing Sing Prison in New York and eventually established the Welfare League Association, an organization designed to assist former prisoners. In the South, during the 1930s, when racial segregation was a way of life in virtually every aspect of society, black inmates competed side by side with their white compatriots for cash prizes at prison rodeos. From a historical perspective, the significance of this feat cannot be overlooked or ignored. By way of comparison, the U.S. military did not become racially integrated until 1948, and even then, it did not completely desegregate until several years later.

As the above paragraph suggests, correctional institutions are capable of providing glimpses of civility, perhaps even hope—not just for the inmates residing within these facilities but also for those living outside the prison walls. The mid-1940s, up until the late 1960s, marked the era of rehabilitation where prisons and jails would become the beneficiaries of scientific advances in treatment and rehabilitation. Correctional psychologists, teachers, and social workers used their expertise to treat offenders in an attempt to “cure” offenders of their criminality. Prisoner classification schemes were also implemented throughout the country in order to meet the educational, psychiatric, and religious needs of the inmate population. During World War II, prisoners donated blood to the Red Cross and also worked on assembly lines to support the war effort. Some inmates were even permitted to enlist and, in fact, served their country with honor.

Shortly after World War II, Gresham M. Sykes, a veteran, used his G.I. Bill to pursue a doctoral degree at Northwestern University in Chicago. In 1958, Sykes published his groundbreaking book, *The Society of Captives*, which today, more than 60 years later, is still regarded as perhaps the most seminal prison ethnography. In this detailed examination of a New Jersey maximum security prison facility, Sykes illustrates how the operational realities of prison life encourage a norm of reciprocity where correctional officers ignore minor rule infractions in exchange for compliance in major areas. This illustrated, perhaps for the first time ever, that contrary to popular opinion, inmates may actually hold some degree of power over their captors. Gresham Sykes also describes how overfamiliarization between the keeper and the kept can lead to the outright corruption of authority. He notes that this is a slow, often subtle process where inmates take advantage of naïve correctional officers who want to be nice, or what he refers to as a “good Joe.” Although Sykes later published in other areas of criminology, and is best known for the pivotal, “techniques of neutralization” theory, his early contribution to prison research is still nothing short of revolutionary. He is, without question, someone who has had a profound influence on prison research.

U.S. Supreme Court decisions under the leadership of Chief Justice Earl Warren have had a major impact on prisons and jails well into the 21st century. Most notably, *Cooper v. Pate*, 378 U.S. 546 (1964), forever changed the dynamics of institutional life, as this landmark decision gave inmates the right to sue prison officials in federal court. As a result of this ruling, the “hands-off” policy of judicial noninterference quickly dissipated. Wardens and correctional officers realized they were subject to significant oversight by the courts. The Warren Court forever changed the landscape of prisons and jails.

In spite of the fact that incarceration has become more humane, it is also being used much more frequently than ever before in the history of prisons and jails. In the early 1970s, in the wake of the civil rights movement and President Lyndon B. Johnson’s war on poverty, there were fewer than 96 prisoners per every 100,000 American citizens. As Professor Loïc Wacquant notes, some penologists, such as Norval Morris and David Rothman, even began to opine that correctional facilities were in an inevitable state of decline. Unfortunately, however, this trend did not persist. In 1974, criminologist Robert Martinson published what became known as the “nothing works” doctrine in corrections. Even though Martinson’s study was replete with methodological errors, it was nevertheless embraced by policy makers. Today, the United States has an incarceration rate of 698 prisoners per every 100,000 people—higher than any other country in the world by far.

President Richard Nixon is one of the first major players in modern history who politicized crime and essentially dismantled the rehabilitation movement in corrections. President Ronald Reagan later borrowed a page from the Nixon playbook in the 1980s when he approved the Sentencing Reform Act, which called for mandatory minimum drug sentences. Under this draconian law, crack cocaine, an illicit substance often used by poor African Americans, was punished 100 times as harshly as powdered cocaine, which was the drug of choice among affluent whites during the 1980s. During the 1990s, President Bill Clinton, a Democrat, gave states \$10 billion dollars to

expand prisons. It seems as though policy makers of both political parties have learned that it is popular to advocate for stronger punishments, whatever the consequences may be.

In 2010, President Barack Obama signed into law the Fair Sentencing Act, which reduced the disparity between crack and powdered cocaine by 18:1. More recently, voters in California approved Proposition 36, a measure that significantly restricts the usage of three-strikes legislation and even authorizes the resentencing of some offenders who are serving life behind the prison walls. If there is a possible silver lining to the 2008 financial crisis, it is that taxpayers are now more than ever sensitive to the fact that it costs an average of \$35,000 a year to imprison an individual. The price tag more than doubles when society incarcerates elderly offenders, which happens to be one of the fastest-growing correctional populations in the United States.

Given the tremendous amount of taxpayer dollars, public resources, and human lives that are devoted to maintaining the criminal justice juggernaut, a number of issues and controversies continue to arise associated with incarceration.

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